



Nurses Act 1964

1964 CHAPTER 44

An Act to make further provision concerning the admission of persons to the roll of nurses maintained for England and Wales under section 2(1)(b) of the Nurses Act 1957 and that maintained for Scotland under section 3(1) of the Nurses (Scotland) Act 1951.

[10th June 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Rules made by the Council under section 3 of the Act of 1957 for regulating the conditions of admission to the roll shall contain provisions enabling a person to be admitted to the roll on proving to the satisfaction of the Council that he is of good character and is of the age prescribed for the purposes of this section, and that either—

- (a) he was, for not less than such period before such date as may be prescribed for the purposes of this paragraph, bona fide engaged in practice, under conditions which were such as to be satisfactory for the purposes of this paragraph, as a nurse in attendance on persons suffering from mental disorder and has such knowledge and experience of nursing as to justify his admission to the roll; or

- (b) he is engaged in nursing and—

(i) had obtained, before the 17th March 1943, the knowledge and experience of nursing of which evidence was required by Rule 10 of the Assistant Nurses Rules

Power to make rules for enrolment of persons experienced in psychiatric nursing and persons having other experience of nursing before 1949.

1945 as a condition of admission to the roll as an Existing Assistant Nurse under Rule 9 of those Rules (which, together with the said Rule 10, provided for the admission to the roll of a person who applied in that behalf before the 3rd February 1946 and provided evidence of his having obtained before the 17th March 1943 knowledge and experience of nursing in the manner specified in the said Rule 10); or

(ii) if he is not qualified for admission to the roll by virtue of the foregoing sub-paragraph, had obtained, before the 1st January 1949, the knowledge and experience of nursing of which evidence was required by Rule 14(1) of the said Rules, or, before the 1st January 1947, that of which evidence was required by Rule 14(2) of the said Rules, as a condition of admission to the roll under Rule 13 of the said Rules (which, as amended by subsequent Rules made by the Council, provided, together with the said Rule 14, for the admission to the roll of a person who desired to obtain admission thereto before the 1st January 1949, and provided evidence of his having obtained, before the 1st January 1949, knowledge and experience of nursing in the manner specified in the said Rule 14(1), or, before the 1st January 1947, knowledge and experience of nursing in the manner specified in the said Rule 14(2)).

(2) Rules made by the Council under the said section 3—

- (a) may prescribe for the purposes of subsection (1)(a) above different periods of practice as therein mentioned in relation to practice carried on in different circumstances;
- (b) may provide that, in such circumstances as may be defined in the rules, where a person could be admitted to the roll in pursuance of provisions contained in the rules and made in compliance with subsection (1) above, except paragraph (b) thereof, but for the fact that his period of engagement in practice as mentioned in paragraph (a) thereof was shorter than that required to qualify him for admission to the roll, he may, notwithstanding that fact, be admitted thereto.

Validation
of certain
admissions
to the roll.

2. Where a person has at a time before the commencement of this Act been admitted to the roll in pursuance of provisions of rules made by the Council, being provisions conforming neither—

- (a) with the requirements of section 2(2) of the Act of 1943 having effect by virtue of paragraphs (a) and (b) thereof (by virtue of which rules so made were required to

contain provisions requiring, as a condition of admission of a person to the roll, that he should have undergone the prescribed training in, and should possess the prescribed experience of, nursing and that that training should have been carried out in certain institutions); nor

- (b) with the requirements of the said section 2(2) having effect by virtue of paragraph (c) thereof (by virtue of which rules so made were required to contain provisions enabling persons who applied to be admitted to the roll within two years after rules made under the provisions of that paragraph first came into operation, that is to say, the 4th February 1944, to be admitted to the roll on production of certain evidence but without their complying with the conditions mentioned in the said paragraphs (a) and (b)); nor
- (c) with the requirements of section 3(1) of the Act of 1957 having effect by virtue of paragraphs (a) and (b) thereof (which re-enact paragraphs (a) and (b) of the said section 2(2)),

that person shall nevertheless be deemed to have been duly admitted to the roll at that time.

3. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

- “the Act of 1943” means the Nurses Act 1943;
- “the Act of 1957” means the Nurses Act 1957;
- “the Council” means the General Nursing Council for England and Wales;
- “nursing” means nursing of the sick;
- “the roll” means the roll of nurses maintained for England and Wales under section 2(1)(b) of the Act of 1957;
- “prescribed” means prescribed by rules made by the Council under the Act of 1957.

4. In the application of this Act to Scotland the last foregoing section shall be omitted, and the other provisions of this Act shall have effect subject to the following modifications:—

- (a) unless the context otherwise requires the following expressions shall have the meanings hereby assigned to them:—
 - “the Act of 1943” means the Nurses (Scotland) Act 1943;
 - “the Council” means the General Nursing Council for Scotland;
 - “nursing” means nursing of the sick;

“ the roll ” means the roll of nurses maintained for Scotland under section 3(1) of the Nurses (Scotland) Act 1951;

“ prescribed ” means prescribed by rules made by the Council under the Nurses (Scotland) Act 1951;

- (b) for references to the Nurses Act 1957, to section 3 of that Act, and to paragraphs (a) and (b) of subsection (1) of that section there shall be substituted respectively references to the Nurses (Scotland) Act 1951, to section 6 of that Act, and to paragraphs (a) and (b) of subsection (2) of the said section 6;
- (c) for references to the 17th March 1943, the 3rd February 1946 and the 4th February 1944 there shall be substituted respectively references to the 5th August 1943, the 5th June 1946 and the 5th June 1944;
- (d) for references to the Assistant Nurses Rules 1945 and to Rules 9, 10, 13 (as amended) and 14 thereof there shall be substituted respectively references to the Rules made by the General Nursing Council for Scotland under Part I of the Act of 1943 and approved by the Secretary of State on 5th June 1944, and to Rules 7, 8, 11 and 12 thereof;
- (e) in section 1(1)(b) the words “ is engaged in nursing and ” shall be omitted.

Short title,
citation and
extent.

5.—(1) This Act may be cited as the Nurses Act 1964, and—

- (a) this Act and the Nurses Acts 1957 and 1961 may be cited together as the Nurses Acts 1957 to 1964;
- (b) this Act and the Nurses (Scotland) Acts 1951 and 1961 may be cited together as the Nurses (Scotland) Acts 1951 to 1964.

(2) This Act does not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Nurses Act 1943	6 & 7 Geo. 6. c. 17.
Nurses (Scotland) Act 1943	6 & 7 Geo. 6. c. 33.
Nurses (Scotland) Act 1951	14 & 15 Geo. 6. c. 55
Nurses Act 1957	5 & 6 Eliz. 2. c. 15.